

15. 9:00 AM CASE NUMBER: MSC21-02370

CASE NAME: MALIK VS. FIERRO

MOTION TO BE RELIEVED AS COUNSEL MOTION TO BE RELIEVED AS COUNSEL RE: SANJEET S.

GANJAM FILED 8/17/26 BY ANIL MALIK

FILED BY: MALIK, ANIL

TENTATIVE RULING:

The Motion to be Relieved as Counsel for Plaintiff and Cross-Defendant Anil Malik is granted. The Court will execute the proposed order lodged with the Court on August 18, 2026. The order will become effective upon service of the order upon the client.

16. 9:00 AM CASE NUMBER: MSC22-00300

CASE NAME: AZAMEY VS CARAPIA

HEARING ON SUMMARY MOTION SUMMARY ADJUDICATION - JAMES UNGER

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff and Cross-Defendant Mariam Azamey and Plaintiff James Unger (collectively, "Cross-Defendants")'s motion for summary adjudication. The Motion relates to Defendant and Cross-Complainant Pamela Parker ("Cross-Complainant")'s Cross Complaint for (1) trespass, (2) negligence, (3) intentional infliction of emotional distress, (4) negligent infliction of emotional distress, and (5) civil conspiracy. The Motion is unopposed.

As a threshold issue, the Court notes that there is a procedural defect with the Separate Statement. A separate statement seeking summary adjudication must state verbatim the noticed issues from the notice of motion at the beginning of each issue for summary adjudication. (See Calif. Rules Court, rule 3.1350, subd. (b); *Truong v. Glasser* (2010) 181 Cal.App.4th 102, 118.) Here, Cross-Defendant's Separate Statement is not organized by either cause of action or issue; instead, it has a single category of "Undisputed Material Facts in Support of Summary Adjudication." This does not comply with Rule of Court 3.1350(b).

The court's power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary, not mandatory. (See *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 523; cf. *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 315–316.)

In lieu of denying the motion based upon a defective separate statement in this case, the Court elects to treat the motion as one for summary judgment only.

For the following reasons, the Motion is **denied**.

Brief Factual Allegations and Procedural Background

This is a property dispute between neighbors regarding an easement. Plaintiffs' Property is the dominant tenement of a 20-foot-wide easement that lies 12.5 feet on the Carapia Property and 7.5